

22STCV24991 22STCV24991

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-09-14

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Case Number: 22STCV24991 Hearing Date: September 14, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

CITY

OF MONTEBELLO.

Plaintiff,

vs.

KAZUHIKO

YAMAGUCHI, et al.

Defendants.

Case No.:

22STCV24991

Hearing

Date:

September 14, 2026

[TENTATIVE]

ORDER CONTINUING MOTION FOR ORDER RECEIVER'S FINAL REPORT AND ACCOUNTING
AND DISCHARGING RECEIVER

I. BACKGROUND

Plaintiff City of Montebello ("City") filed this nuisance abatement and receivership complaint against Defendants regarding the real property at 836 North Vail Avenue, Montebello, California 90640 ("subject property"), on the basis that the subject property had fire hazards, overgrown and dead vegetation, and hoarder-type accumulation of debris, among other issues. Causes of action included receivership, public nuisance, and nuisance per se.

As of November 22, 2022, all named Defendants are in default.

On December 12, 2022, the Court appointed non-party Eric P. Beatty ("Beatty") as the receiver in this action.

On April 22, 2026, Beatty filed the instant motion for order approving receiver's final report and final accounting and discharging receiver.

II. LEGAL STANDARD

California

Rules of Court rule 3.1184, subdivision (a),^[1] provides that a receiver must present, by noticed motion or stipulation of all parties: (1) a final account and report, (2) a request for the discharge, and (3) a request for exoneration of the receiver's surety. Rule 3.1184, subdivision (c), further provides that "[n]otice of the motion or of the stipulation must be given to every person or entity known to the receiver to have a substantial, unsatisfied claim that will be affected by the order or stipulation, whether or not the person or entity is a party to the action or has appeared in it."

III. DISCUSSION

Rule

3.1184, subdivision (c), requires that notice of motion be served on all persons or entities known to the receiver to have a substantial, unsatisfied claim, that will be affected by the order, whether or not the person or entity is a party to the action or has appeared in it. Here, non-party Rumi Yamaguchi ("Rumi"), as intestate heir to Defendants Kazuhiko Yamaguchi and Mitsuru Yamaguchi, has a claim to the remaining assets that will result in payment to Rumi upon approval of the order. Beatty has provided a proof of service of the motion and proposed order only on the City. Beatty has also provided a proof of service on both the city and Rumi of his declaration in lieu of reply and her declaration indicating review of the Sale Approval Order and waiving an appeal of the Sale Approval Order. Rumi appears to have a substantial, currently unsatisfied claim, that will be affected by the order and so Rumi should have been served with notice of this motion prior to the court issuing a ruling on the merits. Although there is no standard proof of service of the motion, Rumi's and Beatty's declarations indicate her knowledge of the issues. Under these circumstances, if Rumi appears at the hearing (telephonically is sufficient), confirms her knowledge of the motion and her declaration, waives formal service of motion, and has no other objections, the Court will deem Rule 3.1184 satisfied and grant the motion.

DATED:

September 14, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

references are to the California Rules of Court.